



Commission Agenda Report

City of Kalamazoo

TO: Mayor Hopewell, Vice Mayor Cooney, and City Commissioners

FROM: James K. Ritsema, ICMA-CM, City Manager

REVIEWED BY: James J. Baker, PE, Public Services Director and City Engineer

PREPARED BY: Jim Hoekstra, P.E. Traffic Engineer

DATE: 5/26/2017

SUBJECT: Portage Street Improvements Project

RECOMMENDATION

It is recommended that the City Commission approve a change order to the design engineering purchase order to include construction engineering services for the Portage Street Improvements (Sheridan to Stockbridge) project with Wightman & Associates, Inc. in the amount of \$107,275.

BACKGROUND

In 2016, The City contracted with Wightman & Associates, Inc. for Professional Engineering Services for Portage Street from Sheridan Street to Stockbridge Avenue which focused on cold milling and resurfacing, construction of new curb and gutter.

Public Services applied and received federal funding through our local Metropolitan Planning Organization, Kalamazoo Area Transportation Study (KATS). Public Services designed the project with a consultant and submitted the project for bidding through the MDOT Local Agency Programs (LAP). Through the LAP, MDOT will handle the bidding, awarding, and contractor payments. The City of Kalamazoo will be responsible for the on-site inspection and verifying the contractor quantities. MDOT will bill the City for the local share of the as-bid amount and any administrative fees.

The additional work requested through this change order is for onsite construction engineering during the construction phase. The construction engineering services includes attendance at the preconstruction conference, review of shop drawings and submittals, full time resident project representative in accordance with federal-aid requirements, Field Manager and paper file management by a certified office technician, attendance at progress meetings, construction staking and all material testing required. Material testing includes aggregates, density, concrete and hot mix asphalt. Record drawings will be prepared at the completion of construction to document all underground work completed.

COMMUNITY RESOURCES CONSULTED

As with all federally funded projects, this was included in the Kalamazoo Area Transportation Study (KATS) Transportation Improvement Program, which is advertised and open to public comment.

FISCAL IMPACT

Under this change order, the City will expand the scope of work with Wightman & Associates, one of our prequalified contractors. Funds are available in the 2017 Major Streets capital improvement plan budget for this project.

ALTERNATIVES

The alternative of not approving the contract is not recommended as Portage Street requires resurfacing and a major portion of the cost is to be funded through federal and state funds.

ATTACHMENTS:

	Type	Description
▣	Proposal	Proposal



WIGHTMAN & ASSOCIATES, INC.

ENGINEERING ♦ SURVEYING ♦ ARCHITECTURE

January 24, 2017

Allegan Office:
264 Western Ave.
Allegan, MI 49010

Telephone:
(269) 673-8465

Website:
www.wightman-assoc.com

City of Kalamazoo
415 Stockbridge Avenue
Kalamazoo, MI 49001

Attention: Mr. Jim Hoekstra, P.E., Traffic Engineer

***RE: PROFESSIONAL ENGINEERING SERVICES – PORTAGE STREET IMPROVEMENTS
MDOT JN 121417***

Dear Jim:

Thank you for the opportunity to offer Professional Engineering Services for Portage Street from Sheridan Street to Stockbridge Avenue.

Wightman & Associates, Inc. (WAI) is a full-service Engineering, Surveying, Architectural, and Environmental firm with a strong local presence, experienced professional staff, and a passion to meet our clients' expectations. We believe people flourish when they partner with a dynamic team of problem solvers. As such, WAI is pleased to present the following proposal for construction engineering services.

During our meeting on January 16 to discuss the final submittal, we were directed to include replacement of approximately 45 lead water services and eleven hydrants along Portage Street. This scope will be added to the bidding documents in accordance with the specifications provided by the City. The City provided the locations of the services to be replaced.

The cost of replacing the lead water services with copper services will be funded through the City's water fund. In recent years, we have seen optimum construction bids in early lettings with significant increases as the year progresses. We believe that we can achieve an April letting for this project, although MDOT may postpone the project one letting due to the late addition of the water services.

We will incorporate the water service and hydrant replacements into the MDOT required documentation including the Engineer's Opinion of Costs in MERL and Special Provisions. Specifically, we anticipate the following tasks and deliverables.

- Design the water service and hydrant replacements in conjunction with the roadway improvements
- Incorporate water service replacements identified by the City into the plans and specifications
- Forward plans to utility companies
- Incorporate water main and service related items into the necessary MDOT components
 - MERL estimate
 - Special Provisions

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During design of the roadway improvements, there were 50+ ADA ramps identified for replacement to achieve compliance and additional curb and sidewalk replacement was added for structural or functional improvements. Pedestrian signal improvements were also added at the Miller Street intersection.

We propose to provide construction administration services including attendance at the preconstruction conference, review of shop drawings or submittals, full-time Resident Project Representative (RPR) in accordance with federal-aid requirements, Field Manager and paper file management by a certified Office Technician, attendance at progress meetings, construction staking, and all material testing required. Material testing includes aggregates, density, concrete, and HMA. I will serve as the Project Manager for WAI. Upon completion of construction, we will prepare record drawings to document the underground work completed.

The estimated fees for design engineering for adding the water services and hydrants are \$8,500 while the estimated fees for construction engineering for the water services and hydrants are \$25,250. All **water-related services** described herein will be provided for a **Not To Exceed Fee of \$33,750**. The fees for construction engineering for the **roadway improvements** will be provided for a **Not To Exceed Fee of \$107,275**. We have attached our Standard Terms and Conditions. In the event of any conflict between the two documents, the City of Kalamazoo standard terms and conditions for providing professional services will take precedence.

If it is more convenient for the City, our current purchase order for design (PO #24265) of the Portage Street project may be amended to include the engineering services for construction engineering.

We are extremely excited by the opportunity to partner with you on this project. If our proposal is acceptable to you, please sign below to authorize us to begin work and return a copy to our office. If you have any questions or comments, please feel free to call me.

Very truly yours,

WIGHTMAN & ASSOCIATES, INC.



Mickey E. Bittner, P.E.
mbittner@wightman-assoc.com
C: 269-266-2159

Enclosure

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This proposal is approved and accepted by the City of Kalamazoo:

Signature

Date

Printed Name & Title

PO Number



Standard Terms and Conditions

Updated 9.01.2016

1. Agreement. Wightman & Associates, Inc. (hereinafter "Consultant") shall provide to the Client the scope of services described in Consultant's Proposal attached hereto. These Standard Terms and Conditions are incorporated into Consultant's Proposal, and together may be referred to as the "Agreement" and shall reflect the professional services (or "Project") for which Consultant is responsible. This Agreement shall be the full extent of the Consultant's obligations. The Consultant shall not be responsible for any obligations or costs except as contained in the Agreement.
2. Authorization. Client shall provide Consultant written authorization to proceed, provided that this signed Agreement by Client shall give the Consultant the right to proceed with the Project.
3. Standard of Care. The Consultant's Standard of Care for the purposes of this Agreement shall be that consistent with the level of care and skill ordinarily exercised by members of its profession currently practicing under similar conditions in similar locations.
4. Terms of Payment/Late Payment Actions/Fees. Payment is due upon presentation of invoice and is past due thirty (30) days from invoice date. Client agrees to pay a finance charge of one and one-half percent (1 ½ %) per month, or the maximum rate allowed by law, whichever is less, on past due accounts.
5. Scope of Services/Additional Services/Changes. If the services covered by this Agreement have not been completed within twelve (12) months of the date of this Agreement (unless otherwise stipulated in the proposal), through no fault of Consultant, extension of Consultant's services beyond that time shall be compensated as "Additional Services." All Additional Services shall be billed separately and the scope of the services and compensation shall be mutually agreed between the parties, but in any case, not less than Consultant's Hourly Rate, and all of Consultant's Reimbursable Expenses shall also be paid by Client to Consultant, in the amounts set forth below.
6. Hidden Conditions. Consultant is not responsible for latent deficiencies or hidden or concealed conditions not discovered by Consultant within the scope of its services. If Consultant has reason to believe that such a condition may exist, it will advise Client as to the nature of the suspected condition and its significance. Client will be responsible for all risks associated with this condition and for undertaking, at its sole cost and expense, additional investigation and corrective work, if required. If Consultant repairs or corrects any such deficiencies or conditions, Consultant shall be compensated for the same, as Additional Services.
7. Betterment. If, due to Consultant's negligence, a required item or component of the project is omitted from Consultant's construction documents, Consultant shall not be responsible for paying the cost required to add such item or component to the extent that such item or component should have been included in the original construction documents. Consultant shall not be responsible or liable for any cost or expense that provides betterment or upgrades or enhances the value of the Project.
8. Opinions of Cost. Consultant's opinions or estimates of probable construction cost are prepared on the basis of Consultant's experience and qualifications and represent Consultant's judgment as a professional generally familiar with the industry. However, since Consultant has no control over the cost of labor, materials, equipment, or services furnished by others, other contractor's methods of determining prices, or over competitive bidding or market conditions, Consultant cannot and does not guarantee that proposals, bids, or actual construction costs will not vary from Client's budget or from Consultant's opinions or estimates of probable construction cost.
9. Code Interpretations. The Client acknowledges that the requirements of the Americans with Disabilities Act, as amended ("ADA") (as well as all state and local laws, codes, or ordinances), will be subject to various and possibly contradictory interpretations. Consultant will endeavor to use reasonable professional efforts to interpret applicable ADA and other building code requirements as they may apply to Consultant's services. Consultant cannot and does not promise, warrant, or guarantee that its services will comply with interpretations of building code requirements as they apply currently or in the future and unless the Consultant is negligent, the Client shall pay for any additional costs or expenses which are necessary to keep the Project in compliance with the ADA and all other laws, codes, or ordinances. Any changes made by Consultant shall be billed as Additional Services.
10. Use of Drawings, Specifications, and Other Documents. The drawings, specifications and other documents prepared by Consultant for this project are instruments of Consultant's services for use solely with respect to this Project and, unless otherwise provided, Consultant shall be deemed the author of these documents and shall retain all common law, statutory, and other reserved rights, including the copyright.
11. Retaining Records. Consultant will retain pertinent records relating to the services performed for a period of five years following submission of the report, during which period the records will be made available to Client at reasonable times.

12. Insurance Coverage. Consultant shall maintain the following types of insurance: (a) Professional Liability; (b) Commercial General Liability; (c) Workers' Compensation; (d) Employers' Liability; (e) Hired and non-owned automobiles. Client shall be responsible for purchasing and maintaining its own commercial liability and property insurance, including an all-risk policy covering all damages or casualty which occurred to the Project in an amount not less than the then full replacement cost of the Project. The Client's commercial liability insurance policy shall be written for an amount of not less than \$1 million, single-limit coverage. The Client's commercial liability and property insurance policy shall not be cancelled or modified without Consultant having received not less than thirty (30) days prior written notice. Consultant shall be named an additional insured on the Client's insurance policies. Client and Consultant waive rights against each other for loss, damage and/or liability to the extent covered by the insurance policies required to be maintained hereunder and each insurance policy hereunder shall contain a waiver of the insurer's rights of subrogation.
13. Limitations/Exclusions. Client agrees that Consultant's total, aggregate liability to Client and any third parties arising from Consultant's professional acts, errors or omissions, shall not exceed Consultant's total fee received for the Project.
14. The Law/Suspension/Termination/Non-Severability. All obligations arising prior to termination of this Agreement shall survive the completion of the services and termination of this Agreement. This Agreement shall be governed in all respects by the laws of the State of Michigan.
15. Indemnity. Except for the limitations set forth herein, Consultant agrees to indemnify and hold the Client harmless from all damage, liability or cost (including reasonable attorney fees and costs of defense) to the extent caused by Consultant's negligent acts, errors, or omissions in the performance of professional services under this Agreement and those of its subconsultants or anyone for whom the Consultant is legally liable. The Client agrees to indemnify and hold Consultant harmless, from all damage, liability or cost (including reasonable attorney fees and costs of defense) to the extent caused by the Client's negligent acts, errors or omissions and by those for whom the Client is legally liable.
16. Certificate of Merit Requirement. Client shall make no claim for professional negligence, either directly or by way of a cross complaint against Consultant, unless Client has first provided Consultant with a written certification executed by an independent consultant currently practicing in the same discipline as Consultant and licensed in the state where the Project issue is located. This certification shall: (a) contain the name and license number of the certifier; (b) specify the acts or omissions that the certifier contends are not in conformance with the Standard of Care for a consultant performing professional services under similar circumstances; and (c) state in detail the basis for the certifier's opinion that such acts or omissions do not conform to the Standard of Care. This certificate shall be provided to Consultant not less than thirty (30) calendar days prior to the filing of any claim. This Certificate of Merit clause will take precedence over any existing state law in force at the time of any claim.
17. Jurisdiction and Venue. Notwithstanding anything in this Agreement to the contrary, Client agrees that any suit related

to any dispute related to this Agreement shall be heard in the appropriate Court in the county of the Project. Client agrees that the appropriate County court shall have the subject matter jurisdiction and will be the appropriate venue for any interpretation or dispute related to this Agreement.

18. Termination. Consultant may terminate this Agreement for convenience by written notice to Client and in such event, the Consultant shall be paid only for all work under this Agreement that Consultant has completed to the date of termination on a prorated, equitable basis as reasonably determined by Consultant and which shall include Consultant's prorated profits, general conditions, and overhead.

19. Billing Rates.

Principal.....	\$190.00/hour
Senior Licensed Staff.....	\$150.00/hour
Licensed Staff II.....	\$130.00/hour
Licensed Staff I.....	\$115.00/hour
Technical Manager.....	\$125.00/hour
Professional Staff IV.....	\$125.00/hour
Professional Staff III.....	\$105.00/hour
Professional Staff II.....	\$95.00/hour
Professional Staff I.....	\$85.00/hour
Technician III.....	\$85.00/hour
Technician II.....	\$75.00/hour
Technician I.....	\$70.00/hour
Administrative.....	\$70.00/hour
3 Man Survey Crew.....	\$185.00/hour
2 Man Survey Crew.....	\$150.00/hour
1 Man Survey Crew.....	\$100.00/hour
3 Man Survey Crew (Construction Staking).....	\$210.00/hour
2 Man Survey Crew (Construction Staking).....	\$175.00/hour
1 Man Survey Crew (Construction Staking).....	\$130.00/hour
Expert Witness/Testimony.....	\$400/hour

Reimbursable Expenses. Compensation for reimbursable expenses shall be computed as a multiple of 1.1 times the expense incurred for the following: Outside Consultants, Travel, Lodging, Postage, UPS, FedEx, Messenger, and Outside Reproduction. Compensation for mileage expenses shall be computed as a multiple of 1.1 times the Federal Rate. In-House Prints/Copies/Plots shall be charged as follows:

- Black & White Prints/Copies
 - 8 ½ x 11 \$0.19/sheet
 - 8 ½ x 14 \$0.19/sheet
 - 11 x 17 \$0.19/sheet
- Color Prints/Copies
 - 8 ½ x 11 \$0.85/sheet
 - 8 ½ x 14 \$0.85/sheet
 - 11 x 17 \$1.25/sheet
- Black & White Plots
 - 12 x 18 \$1.50/sheet
 - 18 x 24 \$2.75/sheet
 - 24 x 36 \$5.00/sheet
 - 30 x 42+ \$7.50/sheet
- Color Plots
 - 12 x 18 \$9.00/sheet
 - 18 x 24 \$18.00/sheet
 - 24 x 36 \$30.00/sheet
 - 30 x 42+ \$42.00/sheet